TENTATIVE RULINGS FOR DEPT. S36 [DATE]

BEFORE THE HONORABLE JOSEPH WIDMAN

PLEASE NOTE: There may be multiple tentative rulings so view the entire document.

ATTENTION: Commencing December 10, 2022, the Court will no longer regularly provide an official Court Reporter to transcribe proceedings in this Department. Parties who wish to have an official record of the proceedings in addition to a minute order must retain a private Certified Shorthand Reporter for the hearing and must submit a "Stipulation and Order For Appointment of Official Reporter Pro Tempore" to the court in the form found on the Court's website. If counsel are appearing for the hearing remotely, the Stipulation can be emailed to the Judicial Assistant for Department S-36 at kcollierkosmatka@sb-court.org. The Court may sign the Order appointing the Certified Shorthand Reporter as the official Court Reporter Pro Tempore. Parties who do not retain a Certified Shorthand Reporter to be designated as an official Court Reporter Pro Tempore are deemed to have waived an official Court Reporter for the proceeding.

REFER TO THE GENERAL ORDERS AND FORMS POSTED ON THE COURT'S WEBSITE.

This Court follows California Rules of Court, rule 3.1308(b) for tentative rulings. (See San Bernardino Superior Court Local Emergency Rule 8.) Tentative rulings are posted on the court's website after 3:00 p.m. the day before the hearing at Tentative Rulings | Superior Court of California | County of San Bernardino

You may appear by remote appearance at the hearing. (https://www.zoomgov.com/my/dept.s36)

You must appear at the hearing, unless ordered otherwise, prepared to address the issues set forth by the court in its ruling.

UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF RULING

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SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF SAN BERNARDINO

CARMEN IRIS PEREZ, et. al., Plaintiffs, v. SAN BERNARDINO MUNICIPAL WATER DEPARTMENT, Defendant.	Case No.: CIVSB 2600093 **[TENTATIVE] ORDER DENYING MOTION FOR A PRELIMINARY INJUNCTION**

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On January 14, 2026, Plaintiffs Carmen Iris Perez and Carmelo Rivera III filed this action against Defendant San Bernardino Municipal Water Department. Plaintiffs are self-represented litigants, and their three-page judicial council form complaint contains little to no information about the facts that give rise to the action. The complaint *does* state an intent to bring claims for "Breach of Statutory Habitability; Civil Code 1941.1 and Breach of Implied Warranty Habitability." Plaintiff claims loss of use of property, hospital and medical expenses, general damage, property damage, and other unspecified damage. (Complaint, ¶¶ 10-11.)

On January 30, 2026, Plaintiffs filed this *ex parte* application seeking an injunction to restore water use to their property at 6561 N. Ryan Lane in San Bernardino. At the initial hearing on February 2, 2026, the Court declined to issue a Temporary Restraining Order and continued the hearing to the current March 4, 2026 date to allow parties to meet and confer regarding potential resolution. The Court further ordered Plaintiffs and defense counsel, in coordination with a representative of the water district, to meet in person at the City's Water Office to reach a

financial agreement permitting restoration of water service. The Court also provided Plaintiffs with verbal information about available legal aid resources in San Bernardino County.

Subsequently on February 26, 2026, Defendant City of San Bernardino, operating through the San Bernardino Municipal Water Department, filed its written opposition to the application. No reply has been filed. After issuing a tentative ruling and conducting a hearing on the motion, the Court now issues its final ruling.

I. APPLICABLE LAW

A preliminary injunction is a drastic and extraordinary remedy and should not be granted unless the movant, by a clear showing, carries the burden of persuasion. (*Mazurek v. Armstrong* (1997) 520 U.S. 968, 972.) Code of Civil Procedure section 526 provides for the issuance of a preliminary injunction in a variety of situations, including where irreparable harm will result to the applicant if the injunction is not granted. (Code Civ. Proc., § 526(a)(2).) The court must evaluate two interrelated factors to determine whether to grant a preliminary injunction: the likelihood that the moving party will prevail on the merits at trial, and the relative interim harm to the parties from the issuance or non-issuance of the injunction. (*Butt v. State of California* (1992) 4 Cal.4th 668, 677-78; Code Civ. Proc., § 526(a)).

"A preliminary injunction may be granted at any time before judgment upon a verified complaint, or upon affidavits if the complaint in the one case, or the affidavits in the other, show satisfactorily that sufficient grounds exist therefor." (Code Civ. Proc., § 527(a).) "'[T]he granting, denying, dissolving, or refusing to dissolve a preliminary or temporary injunction rests in the sound discretion of the trial court upon a consideration of all the particular circumstances of each individual case.' [Citation.]" (*McCoy v. Matich* (1954) 128 Cal.App.2d 50, 52.) "'The discretion, however, should be exercised in favor of the party most likely to be injured.' [Citation.]" (*Id.*)

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II. WHY THE COURT IS DENYING THE MOTION

A. Likelihood of Success on the Merits

It is difficult to assess Plaintiffs' likelihood of prevailing on their complaint because as currently pled it is so sparse as to not contain any cognizable cause of action. Nonetheless, the *ex parte* papers reveal Plaintiffs intend to bring a claim for injunctive relief to compel restoration of water service which Defendant terminated on March 27, 2025.

Plaintiffs reveal in their memorandum that Plaintiff Perez is the mother of Plaintiff Rivera. Elsewhere, however, Plaintiffs refer to Perez as Rivera's "tenant." Plaintiffs each submit declarations in support of the application. Rivera declares he provided all required documentation to open a new water account, but Defendant refuses service based on a prior occupant's debt and a clerical suffix discrepancy. Perez is age 65 and has suffered health harm due to lack of water. (Rivera Decl.) Perez declares effectively the same, adding that she is suffering from dehydration weakness and painful skin conditions as she cannot bathe, clean, or maintain sanitary living conditions. (Perez Decl.) Plaintiffs also provide various documentary evidence showing their efforts to work with Defendant to restore water service.

Public Utilities Code section 10009.6, subdivision (b), provides:

> No municipal corporation owning or operating a public utility furnishing services for residential use to a tenant under an account established by the tenant shall seek to recover any charges or penalties for the furnishing of services to, or for the tenant's residential use from, any subsequent tenant or the property owner due to nonpayment of charges by a previous tenant. For this purpose, the term "subsequent tenant" shall not include any adult person who lived at the residence during the period that the charges or penalties accrued. The municipal corporation may collect a deposit from the tenant service applicant prior to establishing an account for the tenant. The municipal corporation may not require that service to subsequent tenants be furnished on the account of the landlord or property owner unless the property owner voluntarily agrees to that requirement, nor may the municipal corporation refuse to furnish services to a tenant in the tenant's name based upon the nonpayment of charges by a previous tenant.

In opposition, Defendant contends Plaintiff Perez does not constitute a "subsequent tenant" because she lived at the property before the termination of services. Water Department

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Deputy General Manager Robin Omaha declares the existing water account for the subject property was opened in July 2017. Rivera is the account holder, and the email address for the account holder is the same email address listed on Plaintiffs' proof of service of their *ex parte* application on Defendant. The Department's records contain information dating back to 2018 in which Plaintiff Perez called the department for various reasons, including inquiring about payment of balances owing on the account and requesting how to put the account into her name. Plaintiff Perez paid the balance on the account at least once prior to March 2025. As of March 20, 2025, when water service was shut off at the subject property, the past due balance was $1,608.24. (Omaha Decl., ¶¶ 4-8.)

Defendant also submits an unauthenticated administrative "Rule" ostensibly promulgated by the Water Department providing: "Any person who seeks to submit an application for service at a location in which they have already resided but were not the customer of record shall not be granted service until all outstanding balances for service are paid in full." (Exh. C, § 12.) This appears in conformity with the "subsequent tenant" provision found in Public Utilities Code section 10009.6, subdivision (b).

In light of the clear pleading defects currently present, the Court cannot conclude that Plaintiff has a probability of prevailing on the merits of the claims as they are pled in the original complaint. Plaintiff will almost certainly need to amend the complaint to proceed. Ignoring the pleading defect, the evidence Defendant submits suggests Perez might have lived at the subject property before disconnection of water services when the delinquency accrued — although this conclusion is subject to challenge. Nonetheless, Plaintiffs have not presented any evidence contrary to the defense's assertion that Perez lived at the property during the prior period. Under

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the circumstances and given the pleading deficiencies, Plaintiffs do not present a likelihood of prevailing on the merits.

B. Balance of hardships

The balance of hardships clearly favors Plaintiffs in light of Plaintiff Perez's declaration that she is suffering negative health consequences such as dehydration, weakness, and painful skin conditions and cannot bathe, clean, or maintain sanitary living conditions. (Perez Decl.) Defendant does not present any evidence of their own hardship.

III. CONCLUSION

Plaintiffs' application for preliminary injunction is respectfully DENIED.

IT IS SO ORDERED.

Dated: _____ [TENTATIVE – NOT FINAL]
Hon. Joseph B. Widman
Judge of the Superior Court

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